



File No.: EXP202409498

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 14, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the COMMUNITY OF PROPERTY OWNERS A.A.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 11, 2024, and on June 25, 2024, two written complaints were filed, regarding the same facts and with the same content, before the Spanish Agency for Data Protection. The complaints are directed against the COMMUNITY OF PROPERTY OWNERS A.A.A., with NIF ***NIF.1 (hereinafter, COMMUNITY OF PROPERTY OWNERS). The reasons on which the complaints are based are as follows:

They state that on 02/14/2024, the administrator of the community of property owners forwarded a court ruling in which the COMMUNITY OF PROPERTY OWNERS is the defendant and several neighbors are plaintiffs, without removing personal data (name and surname) of the latter.

Subsequently, on 06/06/2024, the administrator sent all owners a copy of a document signed by 17 of them, addressed to the president of the community, in which certain aspects of the minutes of the general assembly held on 04/18/2024 were questioned. At the end of this document, several personal data of the signatories appeared, specifically their name, surname, NIF, portal, floor, letter, garage, and handwritten signature.

A copy of the email dated 06/06/2024 and of the document signed by the 17 community members is provided, although not of the sending of the ruling on 02/14/2024.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to Ms. B.B.B., administrator of the COMMUNITY OF PROPERTY OWNERS, for her to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), with the date of access to its content being 07/02/2024, as stated in the certificate from the Single Enabled Electronic Address (DEHÚ) service.

On 07/22/2024, a response letter from the administrator was received at this Agency, along with a technical report, indicating the following:

☐ That the legal regime governing the activity and obligations of the community of property owners and the administrator is set forth in Law 49/1960, of July 21, on horizontal property (LPH), with the former being authorized to process the personal data of owners, tenants, and co-owners. The basis for such processing would be the fulfillment of legal relationships and obligations, and its purpose is "to ensure compliance by the owners with the obligations imposed by the LPH, as well as to guarantee the proper exercise of the rights that correspond to the community members and third parties in the community."

☐ That the previous regulations establish the right to information of the owners (Article 20.1.e of the LPH) and that the administrator "must safeguard the documentation of the community at the disposal of the holders."

☐ That indeed the sending of the two documents mentioned in the complaint was carried out, both the ruling and the document, and understands that such communications, being of general interest to the

community itself, should be made to all owners and that "in consideration of the general interest of the same, requires the disclosure of those documents that contain information that may affect the proper development and management itself."

□ On the other hand, it communicates that following the complaint and its forwarding, it has decided to hire the services of the external consultancy (...), to carry out legal advisory tasks in the field of personal data protection.

THIRD: On September 11, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

Article 5.1 of the GDPR establishes the principles relating to the processing of personal data, including the principles of "lawfulness" and "data minimization," as follows:

Article 5. Principles relating to processing

1. Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ("lawfulness, fairness, and transparency");

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("data minimization").

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful:

Article 6. Lawfulness of processing

1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public

authorities in the performance of their tasks.

In the present case, there is processing of personal data by sending certain documents containing personal data of certain owners to all owners. The responsible party for this processing would be the COMMUNITY OF OWNERS itself, with the administrator being in charge.

According to the administrator's statement, there would be a legal basis for this processing of data in accordance with Article 6.1 of the GDPR, as the provision of documents such as those mentioned is necessary for compliance with the obligations established by Law 49/1960, of July 21, on horizontal property for communities of owners and their administrators, specifically because they contain information that may affect the management of the COMMUNITY OF OWNERS. In this sense, the processing would be lawful in accordance with Article 5.1 a) of the GDPR.

However, regarding the manner in which personal data has been processed, the principle of "data minimization" provided for in the aforementioned Article 5.1 c) of the GDPR may have been infringed, as personal data of the signatories of the statement (in this specific case, ID number and handwritten signature) that were not necessary for the purpose of the processing, which was to inform the COMMUNITY OF OWNERS of the existence of said statement and its content, were provided to all owners.

III

Classification and Qualification of the Infraction

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the party being claimed would have violated the principle of "data minimization" established by Article 5.1 c) of the GDPR by having sent the aforementioned communication exposing personal data that was not necessary for the intended purpose.

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The known facts could constitute an infringement, attributable to the COMMUNITY OF PROPERTY OWNERS, classified under Article 83.5 of the GDPR, which stipulates the following:

Article 83. General conditions for the imposition of administrative fines

(...)

5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which classifies the following conduct as very serious:

Article 72. Infringements considered very serious

1. In accordance with Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year limitation period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679

IV

Proposal for sanction

This infringement may be sanctioned with a fine of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5 of the GDPR.

Article 83.2 of the GDPR establishes the circumstances to be considered for the imposition of such a sanction:

Article 83. General conditions for the imposition of administrative fines

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2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered;
 - b) the intent or negligence in the infringement;
 - c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
 - d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
 - e) any previous infringement committed by the data controller or processor;
 - f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
 - g) the categories of personal data affected by the infringement;
 - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
 - i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, the compliance with such measures;
 - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.
- In this case, the initial assessment of the fine for the infringement of Article 5.1.c) of the GDPR is ONE THOUSAND euros (1,000.00 EUR)

V

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the controller the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In this case, in the resolution that is adopted, the controller may be required to adopt the technical measures within three months.

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appropriate organizational measures that prevent the exposure of unnecessary data when sending documentation to the owners that includes personal data, for example, by anonymizing them or excluding the parts that contained them and were not necessary.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against COMMUNITY OF OWNERS A.A.A., with NIF ***NIF.1, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT C.C.C. as the instructor and D.D.D. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of article 5.1.c) of the GDPR, classified in article 83.5.a) of that regulation, an administrative fine of 1,000.00 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to COMMUNITY OF OWNERS A.A.A., with NIF ***NIF.1, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to

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This initial agreement will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 800.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, at any time prior to the resolution of this procedure, voluntary payment of the proposed sanction may be made, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 800.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 600.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in the event of opting for either of them, a communication must be sent to the General Subdirectorate of Data Inspection expressing the withdrawal or renunciation of any action or administrative appeal against the sanction, indicating which of the two reductions is being accepted or

if both are.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (800.00 euros or 600.00 euros), you must make the payment by depositing it into account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the agreement to initiate. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es) and the Electronic Headquarters (sedeagpd.gob.es), and that, if you do not access them, it will be done.

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to record its rejection in the file, considering the procedure carried out and continuing with the process.

You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications, and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On December 10, 2024, the party being claimed has proceeded to pay the fine in the amount of 600 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

FOURTH: The previously transcribed Initiation Agreement indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202409498, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER the COMMUNITY OF OWNERS A.A.A. to notify the Agency within 3 months from the date this resolution becomes firm and executive, regarding the adoption of the measures described in the legal grounds of the Initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to the COMMUNITY OF OWNERS A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months starting from the day following the notification of this act, as stipulated in Article 46.1 of the aforementioned Law.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 of the LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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